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File No.: EXP202300789

RESOLUTION OF RECOURSE FOR RECONSIDERATION

Examined the recourse for reconsideration filed by A.A.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated June 5, 2023, and based on the following

FACTS

FIRST: On June 5, 2023, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202300789, in which it was agreed to uphold the claim for the exercise of rights made by the appellant against the DEPARTMENT OF SOCIAL RIGHTS AND WELL-BEING OF THE PRINCIPALITY OF ASTURIAS (hereinafter, the respondent).

SECOND: The resolution now being appealed was duly notified to the appellant on June 14, 2023, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a recourse for reconsideration to this Spanish Agency for Data Protection, in which, in summary, it is stated that the requested right has still not been addressed.

LEGAL GROUNDS

I

The Director of the Spanish Agency for Data Protection is competent to resolve this recourse in accordance with the provisions of Article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and Article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Regarding the statements made by the appellant, it should be noted that this Agency upheld the claim presented, considering that the right had not been addressed. Therefore, there is no contradiction between the claimant's request and the resolution of this Agency.

III

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Examined the recourse for reconsideration presented by the appellant, we can only inform you that this Agency will again require compliance with the resolution from the respondent, and that the resolution of this Agency regarding the claim presented is in line with the recourse filed, so, in summary, both the recourse and this Agency seek the same outcome: that the right be addressed. Therefore, in the absence of controversy, this recourse is dismissed.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the recourse for reconsideration filed by A.A.A. against the Resolution of this Spanish Agency for Data Protection issued on June 5, 2023, in file EXP202300789.

SECOND: TO NOTIFY this resolution to A.A.A.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure, a contentious-administrative appeal may be filed within two months from the day following the notification of this act, as provided in Article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and in section 5 of the fourth additional provision of the aforementioned legal text.

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